IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an application under and in terms of Article 140 of the Constitution for mandates in the nature of Writs of *Certiorari*, *Prohibition* and *Mandamus*.

Court of Appeal Case No: WRT/0990/2025

Herath Abeykoon Bandaralage Sanjeewa Nanda Udugama,
No. 48/9,
Borella Road,
Depanama, Pannipitiya.

Petitioner

Vs

1. **Elkaduwa Plantations Ltd**,
   'Janawathu Piyasa',
   No. 320,
   T.B. Jaya Mawatha, Colombo 10.
   and
   Ratwatta,
   Ukuwela, Matale.

2. **Niroshan Karunarathne**,
   Chairman / Managing Director
   Elkaduwa Plantations Ltd,

Janawathu Piyasa,

No. 320,

T.B. Jaya Mawatha, Colombo 10.

3. **T. A. D. D. Premarathne**,
   Director

4. **R. A. R. S. Mayadunna**,
   Director

5. **B. M. D. K. Bandaranayaka**,
   Director

6. **K. P. Weerasooriya**,
   Director

7. **M. Pragnarathna**,
   Director

8. **A. C. Kalyanakumar**,
   Director

   3rd to 8th Respondents are members of the

   Board of Directors of;

   Elkaduwa Plantations Ltd,

   'Janawathu Piyasa'

   No. 820,

   T.B. Jaya Mawatha, Colombo 10.

9. **Prabath Chandrakeerthi**,

   Secretary

   Ministry of Plantation and Community

   Infrastructure, 11th Floor, Sethsiripaya 2nd

   Stage, Battaramulla.

10. **K. V. Samantha Viddyarathna**, MP
Minister of Plantation and Community Infrastructure
Ministry of Plantation and Community Infrastructure, 11th Floor,
Sethsiripaya 2nd Stage,
Battaramulla.

11. **H. M. S. B. Narampanawa**,
Manager-Human Resources,
Elkaduwa Plantations Ltd
'Janawathu Piyasa',
No. 320,
T.B. Jaya Mawatha, Colombo 10.

12. **Hon. Attorney-General**,
Attorney-General's Department,
Hulftsdorp, Colombo 12.

Respondents

Before : **D. THOTAWATTA, J.**
K. M. S. DISSANAYAKE, J.

Counsel : Nisala Seniya Fernando instructed by Thushari Jayawardana for the Petitioner.

Prabashini Jayasekara, S.C., for the Respondents.

Supported on : 25.11.2025

Written Submissions of the Petitioner tendered on : 18.12.2025

Written Submissions of the Respondents tendered on : 12.02.2026.

Decided on : 27.02.2026.

K. M. S. DISSANAYAKE, J.

The Petitioner in the instant application seeks *inter-alia*, a mandate in the nature of a writ of *certiorari* to quash the decision taken to interdict him without pay as contained in the letter dated 08.09.2025 issued by the 2nd Respondent marked '**P11**'; a mandate in the nature of a writ of *certiorari* to quash the decisions contained in the letter dated 08.09.2025 issued by the 2nd Respondent marked '**P11**'; a mandate in the nature of a writ of *certiorari* to quash the decisions of the Board of Directors of the 1st Respondent taken at the meeting bearing No. 336 held on 29.08.2025 communicated by the letter dated 08.09.2025 marked '**P11**'; a mandate in the nature of a writ of *certiorari* to quash the decision contained in the letter dated 01.09.2025 issued by the 2nd Respondent marked '**P10**'; a mandate in the nature of a writ of *prohibition* preventing the 1st, 2nd, 3rd, 4th, 5th , 6th , 7th , 8th , 9th, 10th, and/or 11th Respondents and/or any one or more of them and/or their servants and agents, and/or their successors in office from taking any steps to charge the Petitioner and/or conduct a disciplinary inquiry

against the Petitioner based on the decision of the Board of Directors of the 1st Respondent taken at the Board Meeting No: 336 dated 29.8.2025 and/or the report of the audit conducted by the Auditor General's Office during the month of May 2025; a mandate in the nature of a writ of *mandamus* directing the 1st, 2nd, 3rd, 4th, 5th, 6th, 7th, 8th, 9th, 10th, and/or 11th Respondents and/or any one or more of them and/or their servants and agents, and/or their successors in office to pay the salary and emoluments of the Petitioner; a mandate in the nature of a writ of *mandamus* directing the 1st , 2nd, 3rd, 4th, 5th, 6th, 7th , 8th , 9th, 10th and/or 11th Respondents and/or any one or more of them and/or their servants and agents, and/or their successors in office to pay the Petitioner backwages and emoluments the Petitioner is lawfully entitled to; and an array of interim orders as prayed for in prayer 'k' to 'o' of his petition dated 08.10.2025.

When this matter came on before us for support of the application for notice as well as the application for interim orders, learned State Counsel raised a preliminary legal objection as to the maintainability of the instant application on the premise that the decision taken to interdict the Petitioner without pay as contained in the letter dated 08.09.2025 issued by the 2nd Respondent marked '**P11**' had been made by the Respondents in the exercise of the powers derived upon them by the contract of employment between the Petitioner and the 1st Respondent (**P2**) and not in the exercise of any statutory powers and therefore, the decision sought to be impugned by the Petitioner in the instant application (**P11**) is not amenable to writ jurisdiction but to the private law and therefore, the instant application should be dismissed *in-limine*.

We heard the learned Counsel for the Petitioner in support of both the application for notice of the instant application as well as the application for interim relief. We also, heard the learned State Counsel for the Respondents in opposition to the application for notice as well as the interim relief and also in support of the preliminary legal objection so raised by him as to the

maintainability of the instant application. Hence, this matter comes up before us today for order thereon.

It would I think, be appropriate in the first instance, to deal with the preliminary legal objection so raised to Court by the learned State Counsel for the Respondents as to the maintainability of the instant application as enumerated above.

It may now, be examined.

In view of the preliminary objection so raised, the pivotal question that would first, arise for our consideration at this juncture is, as to whether the decision taken to interdict the Petitioner without pay as contained in the letter dated 08.09.2025 issued by the 2nd Respondent marked '**P11**' had been made by the Respondents in the exercise of any statutory powers derived upon them by any statute; and if so, whether the decision impugned (**P11**) is amendable to the writ jurisdiction of this Court as contended by the Petitioner, or; as to whether the decision impugned (**P11**) had been made by the Respondents in the exercise of the powers derived upon them by the contract of employment between the Petitioner and the 1st Respondent (**P2**) and not in the exercise of any statutory powers so derived upon them; and if so, whether the decision impugned (**P11**) is amenable to the remedy under private law and not the remedy under public law by way of mandates in the nature of writs as prayed for by the Petitioner; as contended by the learned State Counsel for the Respondents.

It is in this context, let me now, precisely, ascertain what the Petitioner seeks to impugn in the instant application?

As is discernible from a careful scrutiny of the averments contained in the petition filed before this Court by the Petitioner, the documents annexed thereto, and the submissions oral and written made by the learned Counsel for the Petitioner before us in support of the application for notice of the instant application and the interim orders, it is the decision taken by the Respondents

to interdict the Petitioner without pay (**P11**) which the Petitioner now, seeks to impugn in the instant application before us.

The question that would next, arise for our consideration is the pivotal basis upon which the Petitioner seeks to impugn the decision(**P11**) before us?

As can be deducible from a careful scrutiny of the averments contained in the petition filed before this Court by the Petitioner, the documents annexed thereto, and the submissions oral and written made by the learned Counsel for the Petitioner before us in support of the application for notice of the instant application and the interim orders, the pivotal basis therefor **being the alleged unreasonable and irrational conduct of the Respondents to interdict the Petitioner without pay, as communicated by letter dated 8.9.2025 (P11) without any preliminary investigation/inquiry being held, and/or without offering the Petitioner the opportunity to provide any explanation/show cause which according to the Petitioner, is a clear breach of the Establishment Code and rules of Natural Justice.** [Emphasis is mine]

It was averred by the Petitioner in the averments in paragraph 4 (a) of the petition that the 1st Respondent is a limited liability company incorporated on 23.7.1993 under the Companies Act No. 17 of 1982 as a fully government-owned company and re-registered under the Companies Act No.7 of 2007 as a publicly owned enterprise with state ownership, managing ten (10) Estates and that the 1st Respondent was established by vesting lands managed by the State Plantations Corporations in terms of the provisions of the Conversion of Corporations and Government Owned Businesses Undertakings into Public Companies Act No. 23 of 1987 under the State Privatisation Policy and that the 1st Respondent operates as a single shareholder company, with the Secretary to the Treasury being the Golden Shareholder and that the notice in respect of the formation of the 1st Respondent was published in the Extraordinary Gazette Notification No. 776/13 of July 1993 and that the State exercises all pervasive control over the 1st

Respondent, and in view of the aforesaid, the Petitioner states that it is trite that the 1st Respondent is an instrumentality of the State.

It is to be observed that, the Respondent in the submissions-oral or written, had not in any manner, sought to deny or refute the assertion of the Petitioner that the 1st Respondent is a State Agency.

A copy of the Board Resolution passed by the Board of Directors of Elkaduwa Plantations Ltd, at the Board meeting of the Directors held on 29th August 2025 which was certified by the 1st Respondent as a true copy, had been tendered to this Court by the Respondents by the motion dated 12.02.2026 with a copy to the Petitioner. Hence, the Petitioner has been made fully, aware of the Board Resolution and its contents thereby, giving him reasonable opportunity to comment thereon, nevertheless, the Petitioner opted to remain silent without making any comment on it. This Court is thus, entitled to consider the Board Resolution and the contents therein by reason of the fact that a copy of the same had duly, been tendered by the Respondents to the Petitioner in terms of the motion filed before this Court by them on 12.02.2026

It is to be observed that it is this Board Resolution in which the decision taken to interdict the Petitioner without pay as contained in the letter dated 08.09.2025 issued by the 2nd Respondent (**P11**), is contained.

It clearly, appears upon a careful perusal of the Board Resolution and the letter of interdiction (**P11**) that the Auditor General is responsible for auditing the 1st Respondent which clearly, and unequivocally, shows that the 1st Respondent is a State Agency.

It is to be observed that, in terms of the letter of interdiction (**P11**), interdiction of the Petitioner from his employment by the Respondents was based on the decision made by the Board of Directors at the Board meeting No. 336 held on 29.08.2025 and as per Clause No. 31:1:7 of Chapter XLVIII of the Establishment Code.

It was specifically resolved in the resolution by the Board of Directors of the 1st Respondent that decisions pertaining to the disciplinary action are to be made as per the Establishment Code since it was the procedure which was adhered to by the 1st Respondent previously, and therefore, it was resolved by the Board of Directors of the 1st Respondent to withdraw the two labour allowances granted to the Petitioner and to interdict him immediately, as per Clause No. 31:1:7 of Chapter XLVIII of the Establishment Code.

Besides, the contract of employment (**P2**) does not contain any provision with regard to the interdiction of the Petitioner from his employment.

One of the principal contentions so advanced by the Petitioner in the instant application is that the Respondents have acted in violation of the provisions of the Establishment Code (hereinafter called and referred to as the 'E-Code')in that it was contended that the Respondents had failed to adhere to the procedure laid down in the E-Code when they had proceeded to make the decision to interdict him without pay as contained in (**P11**).

It clearly, and unequivocally, manifest from the Board Resolution passed by the Board of Directors of Elkaduwa Plantations Ltd at the Board Meeting of the Directors held on 29th August 2025 and the letter of interdiction (**P11**) that the procedure laid down in the E-Code relating to the disciplinary action of its employees had previously, been adhered to and adopted by the 1st Respondent.

It was held by the Supreme Court in **Elmore Perera Vs. Major Montagu Jayawickrema, Minister of Public Administration and Plantation Industries and Others 1985 [1] SLR 285** at Page 335 that,

> "The Establishments Code is the basic document relating to procedures of disciplinary action against public officers. It has been formulated by the Cabinet of Ministers under Article 55 (4) of the Constitution in whom such a power is reposed. This formulation has the characteristics of a policy decision as it deals with the broad principles and procedures governing

disciplinary action against officers of practically the entire public service in this country.....The administration of the public service is now an internal matter of the Executive. It would however appear that the Cabinet, after due deliberation, has sought to formulate a Code of regulations containing fair procedures and safeguards balancing the requirements and interests of the Government with the rights of public officers, and the legal protection now provided by the law to public officers is contained in this Code. These procedures are therefore mandatory and cannot be superseded or disregarded without due legal authority."

In the light of the facts and the law enumerated above, I would hold that the interdiction of the Petitioner is governed by the procedure laid down by the E-Code and therefore, this Court needs to examine whether the Respondents have violated any statutory provisions contained in the E-Code when the Respondents had issued the disciplinary order (**P11**) in the absence of provisions in the contract of employment (**P2**) relating to interdiction of the Petitioner from his employment.

I would therefore, hold that the preliminary legal objection raised by the learned State Counsel for the Respondents as to the maintainability of the instant application is not entitled to succeed both in fact and law and as such it should be over-ruled *in-limine*.

The only question that remains for our consideration is; Whether the Respondents had acted in violation of the E-Code when they took the decision to interdict the Petitioner without pay as contained in the letter dated 08.09.2025 issued by the 2nd Respondent (**P11**) **without any preliminary investigation/inquiry being held, and/or without offering the Petitioner the opportunity to provide any explanation/show cause which according to the Petitioner, is a clear breach of the Establishment Code and rules of Natural Justice; and if so whether the decision contained in 'P11' is arbitrary, unlawful, malicious, unreasonable, irrational, disproportionate and illegal**

and therefore, liable to be quashed by a mandate in the nature of a writ of *certiorari* as alleged by the Petitioner [Emphasis is mine]

At this juncture, let me briefly, set out the facts pertaining to the instant application as averred in the petition by the Petitioner.

The Petitioner who began his career as Assistant-Superintendent of the 1st Respondent had subsequently, been promoted to the post of Superintendent of the 1st Respondent; and that he had subsequently, been transferred to the head office of the 1st Respondent as Marketing Manager of the 1st Respondent with effect from 01.02.2019 and served in that capacity until he had been interdicted as per the letter of interdiction (**P11**) with immediate effect, namely; 08.09.2025 on the allegation that as per the audit conducted during the month of May, 2025 by the Auditor General's Office, it had been observed that though he was not allocated with a estate bungalow, he had misused the public funds of Rs. 4,739,947/- as a claim of labour allowances from 01.02.2019 to 28.03.2025; and that further, 1st Respondent had paid a total of Rs. 610,725/- from February, 2019 to March, 2025 as EPF to two labourers which the Petitioner had been claiming allowances for, and therefore, it is not recoverable at any cost to 1st Respondent by which the Petitioner had created a huge loss as a responsible officer who is working in a government institute.

It is in this view of the matter, let me now, examine the provisions of the E- code relevant to the issue at hand before us.

Clause 13:1 of the Chapter XLVIII-Volume 2 of the E-Code provides for the preliminary investigation and it enacts thus; "A preliminary investigation is that which is conducted by a Disciplinary Authority or Head of Institution or other Appropriate Authority or by an officer or a Committee of Officers duly authorized by the above authorities to find facts as are necessary to ascertain the truth of a suspicion or information that an act of misconduct has been committed by an officer or several officers, and to find out and report whether there are, prima-facie, sufficient material and evidence to prefer charges and take disciplinary

action against the officer or officers under suspicion. The primary task of an officer or a Committee of Officers conducting a preliminary investigation is the recording of statements of relevant persons, examination of documents and records, obtaining of originals or certified copies thereof, physical verification of state-owned assets in the charge of the officer or officers subject to the investigation, examination of relevant premises, taking over of all articles and documents which are considered necessary and making their observations and recommendations on matters found out by them regarding the act of misconduct committed."

Clause 31:4 of the Chapter XLVIII-Volume 2 of the E-Code enacts **the general rule** that **normally a public officer should be interdicted on matters disclosed in a preliminary investigation held into the charges against him.**

On the other hand, Clause 31:5 of the Chapter XLVIII-Volume 2 of the E-Code, enacts **three exceptions to the general rule** laid down in Clause 31:4 thereof, as follows;

31:5 In such instances as given below, a relevant authority may interdict a public officer even without holding a preliminary investigation as referred to in sub-section 31:4 above.

31:5:1 Where it is evident to the relevant authority that the continuance of the officer in service is detrimental to the holding of a preliminary investigation against him.

31:5:2 Where **the first information itself** on the suspected acts of misconduct committed by the officer is sufficient to establish the relevant matters.

31:5:3 Where Court proceedings have been initiated against a public officer in terms of section 27 of this Code.

Hence, it clearly, appears that the general rule laid down by clause 31:4 of the Chapter XLVIII-Volume 2 of the E-Code is not in any manner, absolute but it is always subject to three exceptions laid down by Clauses 31:5:1, 31:5:2 and

31:5:3 thereof, and in such instances, the relevant disciplinary authority may, interdict the officer concerned without holding a preliminary inquiry however, subject to the Clause 31:6 thereof.

Clause 31 of the Chapter XLVIII-Volume 2 of the E-Code provides for the interdiction and compulsory leave wherein it sets out a number of instances where the relevant Disciplinary Authority, or the relevant Secretary to the Ministry or Head of Department not holding disciplinary authority, **may forthwith interdict** the officer concerned subject to the covering approval of the Disciplinary Authority., and it enacts thus;

"Where it is disclosed, ***prima facie***, that a public officer has committed **either one or some or all of the following acts of misconduct,** the relevant Disciplinary Authority, or the relevant Secretary to the Ministry or Head of Department not holding disciplinary authority, **may forthwith interdict** the officer concerned subject to the covering approval of the Disciplinary Authority. However as soon as the letter of interdiction is issued by the Disciplinary Authority should be informed sending also a copy of such letter to the purpose of obtaining covering approval.

31:1:1 Non-allegiance to the Constitution of the Democratic Socialist Republic of Sri Lanka.

31:1:2 Act or cause to act in such manner as to bring the Democratic Socialist Republic of Sri Lanka into disrepute.

31:1:3 Being prosecuted in a Court of Law on anti-government, terrorist or criminal charges.

31:1:4 Being prosecuted in a Court of Law on bribery or corruption charges.

31:1:5 Being drunk or smelling of liquor within duty hours or within Government premises.

31:1:6 Use or be in possession of narcotic drugs within duty hours or within Government premises.

31:1:7 **Misappropriate or cause another to misappropriate government funds.**

31:1:8 Misappropriate government resources or cause such misappropriation, or cause destruction or depreciation of government resources wilfully or negligently.

31:1:9 Act or cause to act negligently or inadvertently or willfully in such manner as to harm government interests.

31:1:10 Act in such manner as to bring the public service into disrepute." [Emphasis is mine]

Clause 31:6 of the Chapter XLVIII-Volume 2 of the E-Code provides that "Even in the case of an officer interdicted in terms of 31:5:1 and 31:5:2 above, a preliminary investigation should be held, without delay, after interdiction."

What does the word "**forthwith**" embodied in Clause 31:1 of the Chapter XLVIII-Volume 2 of the E-Code mean? [Emphasis is mine]

It was held in **Queen vs. The Justices of Berkshire [(1878-79) 4 Q.B.D. 469 (471)]** that, "The question is substantially one of fact. It is impossible to lay down any hard and fast rule as to what is the meaning of the word 'immediately', in all cases. The words 'forthwith' and 'immediately' have the same meaning. They are stronger than the expression 'within a reasonable time', and imply prompt, vigorous action, without any delay, and whether there has been such action is question of fact, having regard to the circumstances of the particular case".

It was held in **Soysa vs. Anglo-Ceylon and General Estates Co. 19 N. L. R. 374** that, "In my opinion the word "forthwith in the enactment in question should

be construed as meaning, not within a period reasonable in the circumstances, "but "without any delay that can possibly be avoided."

Hence, it becomes abundantly, clear upon a careful analysis of Clauses 31:5:2 to 31:1 and 31:1:7 of the Chapter XLVIII-Volume 2 of the E-Code altogether that when a public officer is interdicted before a preliminary investigation being held not only the requirement in Clause 31:5:1 but also the instances embodied in Clauses 31:5:2 and 31:5:3 may be considered by the disciplinary authority . Accordingly, if the disciplinary authority is of the view that the first information itself on the suspected acts of misconduct alleged to have been committed by the public officer is sufficient to establish the relevant matters, then such officer can be forthwith, interdicted even before a preliminary investigation being held subject to the covering approval of the disciplinary authority in case of the Head of the Department exercising the said power.

The pivotal contention advanced by the learned Counsel for the Petitioner in support of the application for notice and the interim orders is that the Respondents had acted in violation of the E-Code when they took the decision to interdict the Petitioner without pay as contained in the letter dated 08.09.2025 issued by the 2nd Respondent (**P11**) **without any preliminary investigation/inquiry being held, and/or without offering the Petitioner the opportunity to provide any explanation/show cause which according to the Petitioner, is a clear breach of the Establishment Code and rules of Natural Justice and hence, the decision contained in 'P11' is arbitrary, unlawful, malicious, unreasonable, irrational, disproportionate and illegal and therefore, liable to be quashed by a mandate in the nature of a writ of *certiorari* as alleged by the Petitioner** [Emphasis is mine]

It may now, be examined.

Interdiction of the Petitioner from his employment had derived upon the letter of interdiction (**P11**) issued to him by the 2nd Respondent and the material part

thereof, which would be instrumental for the determination of the issue at hand, may be reproduced *verbatim* the same as follows;

> "We write to inform you that you that as per the recent audit conducted during the month of May 2025, by the Auditor General's office it has been observed that though you was not allocated with an estate bungalow, you have misused the public funds of Rs. 4,739,947 as a claim of Labour allowances from 01st February 2019 to 28th March 2025.
>
> Further, Elkaduwa Plantations Ltd; (EPL) has paid a total of Rs. 610,725 from February 2019 to March 2025 as EPF to 02 labourers which you have been claiming allowances for. Therefore, it is not recoverable at any cost to EPL by which you have created a huge loss as a responsible Officer who is working in a Government Institute."

Upon a careful scrutiny of the material part of the letter of interdiction (**P11**), it appears that the interdiction of the Petitioner from his employment was based on an allegation of a serious nature, namely; that though the Petitioner was not allocated with an estate bungalow, he had misused the public funds of Rs. 4,739,947 as a claim of Labour allowances from 01st February 2019 to 28th March 2025; and that the 1st Respondent had paid a total of Rs. 610,725 from February 2019 to March 2025 as EPF to 02 labourers which he had been claiming allowances for, thus, it was not recoverable at any cost to 1st Respondent by which he had created a huge loss as a responsible Officer who is working in a Government Institute.

It is under those circumstances, the Respondent had made a decision to interdict the Petitioner as per a decision made by the Board of Directors at the Board meeting no:336 held on 29/08/2025 and as per the Establishment Code Chapter XLVIII, Clause No: 31:1:7 from the Post of Marketing Manager with immediate effect without pay, subject to the holding of a disciplinary inquiry on the above matter immediately. It is this decision of the Respondents contained in (**P11**) that

the Petitioner now, seeks to impugn before us in the instant application on the basis as enumerated above.

In terms of the letter of interdiction (**P11**), the interdiction of the Petitioner from his employment was solely, and entirely, based on an allegation of misusing public funds amounting to Rs. 4,739,947/- as a claim of Labour allowances from 01st February 2019 to 28th March 2025 for which he was not entitled by reason of the fact that he had not been allocated with an estate bungalow for his occupation by the 1st Respondent; and in consequence, the 1st Respondent had to pay a non-recoverable total sum of Rs. 610,725/- from February 2019 to March 2025 as EPF to 02 labourers which he had been claiming allowances for and by which, the Petitioner had created a huge loss as a responsible Officer who is working in a Government Institute.

The pertinent question that would then arise for our consideration is; From where did the Respondents get **the first information** of the misuse of such a vast amount of public funds by the Petitioner amounting to Rs. 4,739,947/- for the purposes of Clause 31:5:2 of Chapter XLVIII of the E-Code to be read with Clause 31:1 and 31:1:7 thereof?[Emphasis is mine]

The letter of interdiction (**P11**) is self-explanatory on this pertinent question wherein, it was stated that it was disclosed as per the recent audit conducted during the month of May 2025, by the Auditor General's office. This had been well, supported by the Audit Query directed to the 1st Respondent by the Auditor General of this Country pursuant to an audit conducted by him on the 1st Respondent during the period stipulated therein, apparently, by virtue of the powers vested in him in terms of the provisions of the National Audit Act No. 19 of 2018, and the observations of the Auditor General contained therein would be pertinent for the resolution of the issue at hand and they may be reproduced *verbatim* the same in the language it was made as follows;

“ඇල්කඩුව වැව්ලි සමාගමේ ප්‍රධාන කායර්ාලය ඇතුලුව වතු 10 හි සිදු කරන ලද නියැදි විගණන පරීක්ෂාවේද පහත සඳහන් කරුණ අනාවරණය විය

2.ඇල්කඩුව වැව්ලි සමාගමෙහි විධායක බංගලා සඳහා අභ්‍යන්තර කම්කරුවන් දෙදෙනෙකුගේ වැටුප් වාෂර්ික අයවැයට ඇතුලත් කරනු ලබයි. ඒ අනුව බංගලාව හිමි නිලධාරියා අභ්‍යන්තර කම්කරුවන් සේවයේ යෙදවූයේ නම් එම කම්කරුවන්ගේ පැමිණීම ක්ෂේත්‍ර නිලධාරියා විසින් තහවුරු කර ගැනීමෙන් අනතුරුව ක්ෂේත්‍ර තුණ්ඩුවට (Field Chit) හා චෙක්රෝලයට (Check roll) ඔවුන්ගේ නම ඇතුලත් කර, මාසිකව වතු කාර්යාලය මඟින් අදාල කම්කරුවන්ට වැටුප් ගෙවනු ලබයි. ඒ අනුව,

අ) (1) 2019 පෙබරවාරි 01 දින සිට 2025 මාර්තු 28 දින දක්වා සමාගමේ සේවය කරනු ලබන අලෙවි කළමනාකරු වන එස් එන් උඩුගම මහතා හට පදිංචිය සඳහා බංගලාවක් ලබා දී නොතිබුණද ඔහු විසින් අභ්‍යන්තර කම්කරුවන් දෙදෙනෙකු සේවයේ යෙදවූ බවට සඳහන් කරමින් ඉහත සඳහන් කාල පරිච්ඡේදය සඳහා රු.4,739,947 ක කම්කරු දීමනාවක් ලබාගෙන තිබුණු බව නිරීක්ෂණය විය. විස්තර ඇමුණුම 01 හි දැක්වේ.

(ii) එමෙන්ම එස්. එන්. උඩුගම මහතා විසින් අභ්‍යන්තර කම්කරුවන් දෙදෙනෙකු සේවයේ යෙදවූ බවට ක්ෂේත්‍ර නිලධාරීන්ද තහවුරු නොකරන අතර, ඉහතකාල පරිච්ඡේදයේ කිසිදු දිනක උදෑසන පෙරට්ටුව සඳහාද කම්කරුවන් දෙදෙනා පැමිණ නොතිබුණි.

(iii) තවද, 2019 පෙබරවාරි මස සිට 2025 මාර්තු මාසය දක්වා නාලන්ද වතු අධිකාරීවරුන් සාමාන්‍ය පෙරට්ටු (General Muster) 12 ක් පවත්වා ඇති අතර, එම එකදු පෙරට්ටුවකට හෝ එස් එන් උඩුගම මහතා විසින් කම්කරු දීමනාව ලබා ගැනීම සඳහා නම් ඇතුලත් කළ කම්කරුවන් පැමිණ නොතිබුණි.

(iv) එමෙන්ම ඇල්කඩුව වැව්ලි සමාගමේ සභාපතිවරයා විසින් එස්.එන් උඩුගම මහතා ඇමතූ 2029 ජනවාරි 10 දිනැති ලිපිය මඟින් ඔහුට කම්කරු දීමනාවක් අනුමත කළද, එනම් අලෙවි කළමනාකරු ලෙස සේවා තත්ත්වය වෙනස් කිරීමේදී, ඊට පෙර පරිදි වතු අධිකාරී ලෙස කම්කරුවන් දෙදෙනෙකු බංගලාවේ සේවයේ යොදවා එම කම්කරුවන්ට ගෙවූ දීමනාව ඔහුගේ බංගලාව සඳහාද ඉහත පරිදි ලබාගත හැකි බව සඳහන් වුවද, පෞද්ගලික නිවසට හෝ එස්. එන්. උඩුගම මහතාට කම්කරු දීමනාවක් මුදලින් ලබාගත හැකි බව සඳහන් කර නොමැති බව නිරීක්ෂණය වේ.

(v) තවද, එස්.එන් උඩුගම මහතාට ඇල්කඩුව වැවිලි සමාගම විසින් බංගලාවක් සපයා නොතිබියදී, ඔහු විසින් 2019 පෙබරවාරි මස සිට 2025 මාර්තු මාසය දක්වා කම්කරුවන් දෙදෙනෙකුගේ නම් ඇතුලත් කර ලබාගත් කම්කරු දීමනාව වෙනුවෙන් සමාගම විසින් රු. 488,580 ක සේවක අථර්සාධක අරමුදල් දායකත්වයක් හා රු. 122,145 ක සේවක භාරකාර අරමුදල් දායකත්වයක් දරා තිබූ අතර, එමඟින් රු. 610,725 ක අයකරගත නොහැකි අලාභයක් සමාගමට දැරීමට සිදුව ඇති බව නිරීක්ෂණය විය....."

There is no reason to reject and/or disbelieve the observations so made by the Auditor General that the Petitioner had misused the public funds to the value as enumerated therein for; the observation was based upon an audit conducted by him by virtue of the powers statutorily, vested in him as enumerated above, and therefore, the said observations made by the Auditor General should be construed **as the first information** on the alleged misuse of public funds by the Petitioner for all purposes and intents of Clause 31:5:2 of Chapter XLVIII of the E-Code.

The Observations so made by the Auditor General had been well, supported by the contents of the letter referred to in paragraph 2**(අ)(iv)** of the Audit Query, namely; the letter annexed to his petition of the Petitioner marked as '**P9**' and Clause 1 of **P9** would be pertinent in this regard and it reads thus;

> "You will be entitled for two (02) labour allowances **in the usual manner enjoyed by you presently,** based on the audit requirements;" [Emphasis is mine]

The question that would then, arise is; What does it mean by the phrase "two (02) labour allowances **in the usual manner enjoyed by you presently**"? [Emphasis is mine]

Clauses 8 and 9 of the letter of appointment/contract of employment (**P2**) would be important in this regard and they read thus;

> "08. QUARTERS : You will be provided with a bungalow free of rent on the estate supplied with hard and soft furnishings as per Estate Inventory.
>
> 09. LABOUR ALLOWANCE: You will be entitled to one indoor and one outdoor labourer. Such labourers shall be remunerated by the Elkaduwa Plantations Limited through the Estate Checkroll."

It would also be pertinent to examine Clause 1 of '**P7**' which is the letter of transfer dated 03.01.2019 by which the Petitioner was transferred to the head office as the Marketing Manager and it reads thus;

> "1) Labour allowances :-Since your working place is Head Office you will not be entitled for an Official Bungalow and you will not be paid the normal labour allowances."

A careful reading of Clauses 8 and 9 of the letter of appointment/contract of employment (**P2**) in conjunction with Clause 1 of '**P7**', it becomes abundantly, clear that the Petitioner is entitled to two labour allowances only where he is provided with an official bungalow; and that he is not entitled to claim the two labour allowances in cash nor is he entitled to claim labour allowances for his private residence. It is this sense that the phrase "two (02) labour allowances **in the usual manner enjoyed by you presently**" contained in '**P9**' should be construed and understood as observed by the Auditor General in the Audit Query directed to the 1st Respondent as enumerated above. However, the Petitioner had nevertheless, claimed two labour allowances in Cash for the period stipulated in the letter of interdiction (**P11**) as enumerated above, notwithstanding the fact that he had not been provided with an official bungalow for the said period. [Emphasis is mine]

Hence, it *prima facie* appears that the first information itself namely; Audit Query directed by the Auditor General to the 1st Respondent, on the suspected acts of

misconduct alleged to have been committed by the Petitioner is sufficient to establish the relevant matters.

Clause 31:11 and 31:11:2 of Chapter XLVIII of the E-Code enact thus;

> "31:11 A public officer interdicted under the following circumstances should not be paid any emoluments during the period of interdiction.
>
> 31:11:2 Where misappropriation of a serious nature of public funds and property is committed or where they are caused to be destroyed or depreciated by acts of commission or omission."

Hence, the Respondents are entitled to interdict the Petitioner without pay acting under the powers vested in them by Clause 31:5 Chapter XLVIII of the E-Code to be read with Clauses 31:5:2, 31:1, 31:1:7, 31:11 and 31:11:2 thereof, and therefore, the decision of the Respondents contained in '**P11**' to interdict the Petitioner without pay can sustain in law.

Besides, it clearly, appears from a careful reading of the resolution adopted by the Board of Directors of the 1st Respondent that the Board of Directors had proceeded to interdict the Petitioner without pay taking into consideration the Audit Report as the preliminary investigation for all purposes and intents of the said provisions of the E-Code.

Hence, it clearly, appears that the Respondents had interdicted the Petitioner without pay on the alleged misuse of public funds to the value as enumerated above, by virtue of the powers vested in them by Clauses 31:1, 31:1:7, 31:5 and 31:5:2 of Chapter XLVIII of the E-Code thereby, making the decision of the Respondents to interdict the Petitioner without pay, *intra-vires*.

It is in this view of the matter, let me now, consider the principal ground upon which the Petitioner seeks to impugn the decision contained in '**P11**'.

The common law grounds of judicial review are illegality, irrationality and procedural impropriety as held in **Council of Civil Service Union v. Minister for the Civil Service (1985) AC 374(HL)**. There, Lord Diplock went on to state as follows;

"By "illegality" as a ground for judicial review I mean that the decision-maker must understand correctly the law that regulates his decision-making power and must give effect to it. Whether he has or not is par excellence a justiciable question to be decided, in the event of dispute, by those persons, the judges, by whom the judicial power of the state is exercisable.

In the instant application, the Respondents had having clearly, understood the law that regulates its decision contained in '**P11**' and given effect to it as enumerated above. Hence, the decision contained in '**P11**' is not in any manner, illegal and therefore, *intra-vires*.

Lord Diplock in the case referred to above went on to state as follows;

> "By "irrationality" I mean what can by now be succinctly referred to as "Wednesbury unreasonableness" (Associated Provincial Picture Houses Ltd. v. Wednesbury Corporation [1948] 1 KB 223). It applies to a decision which is so outrageous in its defiance of logic or of accepted moral standards that no sensible person who had applied his mind to the question to be decided could have arrived at it. Whether a decision falls within this category is a question that judges by their training and experience should be well equipped to answer, or else there would be something badly wrong with our judicial system. To justify the court's exercise of this role, resort I think is today no longer needed to Viscount Radcliffe's ingenious explanation in Edwards v. Bairstow [1956] AC 14 of irrationality as a ground for a court's reversal of a decision by ascribing it to an inferred though unidentifiable mistake of law by the decision-maker. "Irrationality" by now can stand upon its own feet as an accepted ground on which a decision may be attacked by judicial review.

For the reasons set out above, the decision contained in '**P11**' cannot in any manner, be said to be irrational for; it is not so outrageous in its defiance of logic nor of accepted moral standards that no sensible person who had applied his mind to the question to be decided could have arrived at it.

Lord Diplock in the case referred to above, went on to state further as follows;

> "I have described the third head as "procedural impropriety" rather than failure to observe basic rules of natural justice or failure to act with procedural fairness towards the person who will be affected by the decision. This is because susceptibility to judicial review under this head covers also failure by an administrative tribunal to observe procedural rules that are expressly laid down in the legislative instrument by which its jurisdiction is conferred, even where such failure does not involve any denial of natural justice. But the instant case is not concerned with the proceedings of an administrative tribunal at all."

In view of the foregoing reasons, the decision of the Respondents to interdict the Petitioner as contained in '**P11**', cannot successfully, be attacked on the basis of procedural impropriety for; the said decision had been arrived at by the Respondents by adhering to the procedural rules laid down in the E-Code as morefully, enumerated above.

Besides, it is to be observed, that the Petitioner still has ample opportunity to challenge any decision of the Respondents after the investigations (including the domestic inquiry) are over. The interdiction will not be a presumption of guilt and it cannot be considered as a punishment. The interdiction is one of the foremost processes used to initiate investigations in to allege misconducts.

For the reasons enumerated above, I would find myself unable to agree with the contention advanced by the learned Counsel for the Petitioner that the decision contained in '**P11**', is arbitrary and/or unlawful and/or malicious and/or irrational and/or disproportionate and/or illegal.

In the light of the law and the facts enumerated above, I would hold that the Petitioner has not made out a *prima facie* case for notice.

I would therefore, refuse to issue notices on the Respondents.

In the result, I would dismiss the instant application, however, without costs.

JUDGE OF THE COURT OF APPEAL

D. THOTAWATTA, J.

I agree.

JUDGE OF THE COURT OF APPEAL